



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2022-25739 / PODS Case No. C-031930 regarding Police Officer Anthony Finno

Date: December 2, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Finno was discourteous and used offensive language by wearing a patch on his uniform. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Finno will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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February 4, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Anthony Finno (Tax Reg #948968, DADS #2022-25739)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charges along with a penalty of Training was agreed upon and signed by all parties on December 11, 2024. Assistant Deputy Commissioner Jeffrey Adler endorsed the negotiated settlement on January 28, 2025.

In this case, Lieutenant Alam's BWC footage shows PO Finno who is standing in the hallway outside of Ms. [REDACTED]'s apartment and appears to have several patches affixed to his ballistic vest, one of which appears to be the "Punisher" insignia, blended with the American flag. During his interview, PO Finno acknowledged that, on the incident date, he had been wearing several patches on his ballistic vest but that he no longer wore them because of NYPD policy not to wear patches on your vest. Since 2017, the Punisher logo has been visible on articles of clothing and weapons held at white supremacy rallies. Furthermore, wearing the Punisher patch could engender "the idea that the police are here to punish people," which stands clearly in opposition to PG 200-02 directive to "maintain a higher standard of integrity [...] value human life, [and] respect the dignity of each individual." As such, PO Finno affixing and displaying an unauthorized Punisher patch was inherently discourteous, offensive, and in clear violation of the Patrol Guide.

For the charge of discourtesy, the disciplinary matrix lists a mitigated penalty of training, a presumptive penalty of the forfeiture of five (5) vacation days, and an aggravated penalty of the forfeiture of ten (10) vacation days. For the charge of offensive language, the disciplinary matrix lists a mitigated penalty of the forfeiture of one (1) vacation day, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of the forfeiture of Termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to Offensive Language for the following reasons:

Officer Finno has been a member of the NYPD for fourteen years and has no prior disciplinary record. Furthermore, throughout his service, Officer Finno has not been named as a subject officer in any other CCRB case

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board